

25STCV31043 25STCV31043

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Case Number: 25STCV31043 Hearing Date: August 3, 2026 Dept: 514

Jones v. CVS Pharmacy, Inc.

25STCV31043

Plaintiff's Motion for Trial Preference

Tentative Ruling

The motion is denied without prejudice on procedural grounds.

Background

This case arises

out of an alleged slip and fall at a CVS Pharmacy on West Slauson Avenue in Los Angeles on August 1, 2025.

On October 23,

2025, Helena Hammond Jones ("Plaintiff") filed the complaint in this action against CVS Pharmacy, Inc.; Garfield Beach CVS, LLC; CVS Solutions, LLC; Bryant Marroquin; and Does 1 through 50, asserting causes of action for (1) negligence, (2) negligent hiring, supervision, and/or retention, and (3) premises liability.

On December 1,

2025, Defendant Garfield Beach CVS, LLC ("Defendant") (on its own behalf and as erroneously sued as CVS Pharmacy, Inc. and CVS Health Solutions, LLC) filed an answer.

On January 5,
2026, the Court, on the stipulation of the parties, issued an order dismissing CVS
Pharmacy, Inc. and CVS Health Solutions, LLC without prejudice.

On March 3, 2026,
Bryant Marroquin filed an answer.

On April 2, 2026. the
Court set this matter for trial on February 16, 2028.

On June 12, 2026, the
Court, at the request of Plaintiff, dismissed Bryant Marroquin without
prejudice.

On June 17, 2026,
Plaintiff filed this motion for a trial preference. Defendant filed an opposition on July 21, and
Plaintiff filed a reply on July 27.

Legal
Standard

Code of Civil
Procedure section 36, subdivision (a) provides:

“A party to a
civil action who is over 70 years of age may petition the court for a
preference, which the court shall grant if it makes both of the following
findings:

(1)

The party has a substantial interest in the
action as a whole.

(2)

The health of the party is such that a
preference is necessary to prevent prejudicing the party's interest in the
litigation.”

A motion for a

preference must be “supported by a declaration of the moving party [stating] that all essential parties have been served with process or have appeared.” (Code Civ. Proc., § 36, subd.

(c)(1). The motion may be supported by a declaration by the attorney for the party seeking the preference “based upon information and belief as to the medical diagnosis and prognosis of any party.” (Code Civ. Proc., § 36.5.)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record.”

(Code Civ. Proc., § 36, subd.

(f).) “Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Ibid.)

Discussion

Plaintiff was born in 1948 and is 78 years old. (See Meislin Decl., ¶ 5.) She “has been diagnosed with a major neurocognitive disorder and anxiety, both due to the traumatic brain injury” that Plaintiff associates with the events at issue. (Meislin Decl., ¶ 4.) Plaintiff’s counsel states that she faces a “shortened life expectancy” and that a preference is necessary so that “she can participate in her case and have the opportunity to benefit from any recovery.” (Meislin Decl., ¶¶ 6-7.)

There is one procedural defect in the moving papers, however. The statute requires that a motion for a preference must be supported by a declaration stating “that all essential parties have been served with process or have appeared.” (Code Civ. Proc., § 36, subd. (c)(1). No such declaration has been filed.

This is not a mere formality. Once the Court grants a preference, the Court’s power to grant any continuance is extremely limited. Before granting a preference, the Court must receive assurances – in the form of a written declaration, signed under penalty of perjury by the plaintiff or counsel – that that plaintiff will not seek to add new essential parties to the litigation in the limited time available prior to

trial.

Plaintiff has not complied with the
statutory requirements. The motion is denied without prejudice.

Conclusion

The Court DENIES WITHOUT PREJUDICE the
motion of Plaintiff Helena Hammond Jones for a trial preference.

Moving Party is ordered to give notice.